

Syllabus

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SUPREME COURT OF THE UNITED STATES

Syllabus

BELLAREVELATION v. CALILAHAN, ET AL.**CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR
THE DISTRICT OF COLUMBIA**

No. 26–7. Decided June 30, 2026

Petitioner BellaRevelation, a United States District Judge for the District of Columbia, brought this action after Respondent Senator Callahan, acting as Chair of the Senate Judiciary Committee, issued a subpoena compelling Petitioner’s appearance before the Committee, conducted an investigation into alleged judicial misconduct, entered findings upon the congressional record, and purported to hold Petitioner in contempt of Congress. Petitioner sought vacatur of the contempt citation, relief from the subpoena and investigation, declaratory relief concerning the congressional findings, and injunctive relief.

The District Court held that the purported contempt citation was void because neither a congressional committee nor its chair may unilaterally impose criminal or inherent contempt of Congress. The court denied all remaining relief. It held that the subpoena and investigation were facially valid, articulated a standard for conduct outside Article III good behavior, and declined declaratory relief concerning the congressional record on the basis of judicially implied Speech and Debate protections, despite acknowledging that no Speech or Debate Clause appears in this Constitution.

Held: The judgment is affirmed in part and reversed in part.

1. A court may not judicially imply a constitutional provision, such as the Speech or Debate Clause, on the theory that its absence from the constitutional text was inadvertent. Courts interpret the Constitution that was adopted, not the Constitution that might have been adopted. Whatever common-law, statutory, or structural legislative immunities may exist, *Tenney v. Brandhove*, 341 U. S. 367 (1951), does not authorize a court to insert an absent constitutional provision into a written Constitution. The District Court therefore erred in relying upon judicially implied Speech and Debate protections. Pp. 2–3

Syllabus

2. Congress may begin an impeachment-related investigation into alleged judicial misconduct without first satisfying a heightened, judicially enforceable factual-predicate standard. The Good Behavior Clause protects judicial independence in adjudication and does not permit Congress to punish judges merely for lawful judicial decisions. But judges remain civil officers subject to impeachment, and the impeachment power necessarily includes authority to investigate alleged misconduct potentially outside Article III good behavior. The Court does not define the full scope of Article III good behavior. Absent an express constitutional limitation, courts do not police the sufficiency of Congress’s investigative predicate at the outset of an impeachment-related inquiry. Pp. 3–7.

3. *In re Hastert Clause*, 1 U. S. ____ (2025), is overruled insofar as it transformed the *In re Forfeiture* inherent-review standard into a modification of the political question doctrine. *In re Forfeiture* remains undisturbed, and courts may continue to enforce express constitutional limitations in properly presented cases. But courts may not supervise political-branch discretion, internal proceedings, motives, timing, evidentiary thresholds, or impeachment-related investigative judgments merely because those matters are framed as structural constitutional threats. Pp. 7–9.

4. The District Court correctly declined declaratory relief concerning findings placed upon the congressional record, although it erred in relying upon implied Speech and Debate protections. The requested declaration would require courts to examine congressional testimony, compare that testimony against impeachment-related committee findings, and declare whether a coordinate branch’s factual characterizations were materially false. That inquiry is foreclosed by the political-question principles restored here. Petitioner identifies no express constitutional limitation requiring judicial correction of Congress’s impeachment-related factual findings. Pp. 9–11.

5. Respondents’ alternative reliance on Section 502(a) of the Judiciary Act is not decided. Because the requested relief is unavailable on constitutional and structural grounds, the Court need not determine whether Section 502(a) independently bars any portion of this suit. P. 11.

Affirmed in part and reversed in part.

SAICHARI, C. J., delivered the opinion for a unanimous Court. INSLEE, J., filed a concurring opinion.

Opinion of the Court

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SUPREME COURT OF THE UNITED STATES

No. 26–7

BELLAREVELATION, PETITIONER *v.* CALILAHAN, ET AL.
ON WRIT OF CERTIORARI TO THE UNITED STATES DISTRICT
COURT FOR THE DISTRICT OF COLUMBIA

[June 30, 2026]

CHIEF JUSTICE SAICHARI delivered the opinion of the Court.

We consider whether a court may judicially imply a constitutional provision absent from the text of the Constitution on the ground that its omission was likely inadvertent; whether the separation of powers and the Good Behavior Clause permit Congress to investigate a sitting federal judge without heightened scrutiny under *In re Hastert Clause*, 1 U. S. ____ (2025); and whether the lower court erred in declining declaratory relief regarding findings placed on the congressional record.

I

Petitioner BellaRevelation is a United States District Judge. In early May 2026, Respondent Senator Calllahan, acting as Chair of the Senate Judiciary Committee, transmitted a congressional subpoena requiring Petitioner to appear before the Committee. On the date of the hearing, the Committee convened shortly before the time identified in the subpoena. No separate notice of commencement was given to Petitioner. After the subpoena deadline passed, Respondent moved that Petitioner be held in contempt of Congress for failure to appear. Petitioner appeared shortly

Opinion of the Court

thereafter, but Respondent later declared that Petitioner had been found in contempt.

Petitioner filed this civil action seeking relief from the subpoena, investigation, contempt citation, and findings placed upon the congressional record. The District Court consolidated the pending submissions, motions, and evidentiary materials into a single summary-judgment disposition. It concluded that the purported contempt citation was void because neither a committee nor its chair could unilaterally impose criminal or inherent contempt of Congress. The court therefore declared the contempt citation of no effect and ordered that no punitive action be taken on its basis.

The District Court denied the remaining relief. It held that the subpoena and investigation were facially valid because Congress possesses broad authority to investigate matters potentially bearing on impeachment and judicial conduct. It also articulated a three-part benchmark for conduct falling outside Article III good behavior. Finally, the court declined to issue declaratory relief concerning the congressional record, relying on judicially implied Speech and Debate protections despite acknowledging that no Speech or Debate Clause appears in this Constitution.

This Court granted certiorari to resolve the questions now before us.

II

A court may not judicially imply a constitutional provision, such as the Speech or Debate Clause, on the theory that its absence from the text was inadvertent. While some sitting members of this Court were present for the Third Continental Congress, *Odure v. Federal Election Commission*, 1 U. S. ____ (2026) (Saichari, J., concurring) ("This is very clear from the intent of the Framers—I would know because I was there."), our task is to interpret the Constitution that was adopted. Since certiorari was granted, the people declined to adopt a constitutional

Opinion of the Court

measure that would have added the Clause. *See* Federal Election Commission, *Certified Copy of Ballot Summary and Analysis, 2026 June Proposition 7 Referendum*, Constitutional Measure 7 (2026). This Court will not achieve by implication what the people declined to enact. We therefore do not recognize implied Speech or Debate protections here. The judgment can be resolved on narrower grounds without defining any narrower structural legislative immunities. Nor does *Tenney v. Brandhove*, 341 U. S. 367 (1951), require a different result. Whatever common-law or statutory immunity principles *Tenney* recognized, it does not authorize a court to insert an absent constitutional provision into a written Constitution. *See Imbler v. Pachtman*, 424 U. S. 409, 418 (1976). We thus express no view on whether structural legislative immunities independent of the Speech or Debate Clause may exist.

III

The Petitioner’s second question asks whether the separation of powers and the Good Behavior Clause require heightened scrutiny of a congressional investigation into a sitting federal judge. That argument rests principally on *In re Hastert Clause*, 1 U. S. ____ (2025). *See* Brief for Petitioner 15–20.

Petitioner does not contend that judges are immune from every congressional inquiry. Petitioner rather argues that where Congress investigates a sitting Article III judge, and where the investigation is allegedly directed at judicial decisions and case-management choices, Congress must possess more than dismissed judicial complaints, litigation grievances, or allegations still being gathered when the subpoena issues. The Petitioner argues the Constitution requires an articulable, non-speculative factual basis suggesting conduct potentially outside Article III good behavior before such an investigation may begin. *See* Brief

Opinion of the Court

for Petitioner 1, 8–9, 15–20; Reply Brief for Petitioner 11–13.

Respondents answer that Petitioner mischaracterizes the investigation. They contend that the inquiry was not directed solely at judicial rulings, but concerned allegations of improper *ex parte* communications, irregularities in case assignment, and prior judicial complaints. *See* Brief for Respondents 2, 4, 8–11. Those subjects, Respondents argue, fall outside the protected core of judicial decisionmaking and supplied at least a facially legitimate impeachment-related basis for inquiry. *Id.*, at 8–10.

The Petitioner contests the Respondent’s argument. The Petitioner points to the record of direct messages, the asserted administrative nature of alleged *ex parte* communication, and testimony concerning case assignment arguing that the Senate Committee’s stated predicates were incomplete, unsupported, or refuted by the record. Reply Brief for Petitioner 11–16.

We agree with Respondents on the question before us.

The District Court began from a sound premise. Article III judges hold office during good behavior, and good behavior is not an empty phrase. Then Justice Feelings, riding the District Court for this case, articulated a test by which an Article III judge is not in good behavior. That test is if they (1) disobey the laws of the nation, (2) act in any way which is explicitly contrary to the Constitution of the United States, or (3) act contrary to the rules which apply to them. *BellaRevelation v. Calilahan*, 6 F. Supp. 3d 8, 10 (D.D.C. 2026). We need not adopt this test as an exhaustive definition of Article III good behavior. It is sufficient for present purposes that the District Court correctly recognized that good behavior is not an empty phrase.

The District Court also correctly recognized that an investigation is not an adjudication. *Id.*, at 10–11. “The natural course of a legislative inquiry,” it explained, “is that an investigation comes first, followed by charges, in the form of an impeachment, if that investigation yields any

Opinion of the Court

fruit.” For that reason, it concluded that congressional investigations into the conduct of a judge need only allege “some kind of infraction, some kind of poor behavior” to be facially valid. *Id.*, at 10–11. Applying that standard, the District Court identified allegations of improper *ex parte* communications and a judicial complaint alleging violations of judicial ethics. *Id.*, at 11.

Investigation, by its nature, precedes conclusion. It is the means by which Congress determines whether legislation, oversight, discipline, or impeachment may be warranted. To require Congress to satisfy a heightened, judicially enforceable factual-predicate standard before beginning an inquiry would invert the relationship between evidence and investigation. The Constitution does not require Congress to know the answer before it asks the question.

English jurist William Blackstone described impeachment as “a presentment to the most high and supreme court of criminal jurisdiction by the most solemn grand inquest of the whole kingdom,” 4 W. Blackstone, *Commentaries* *259, an understanding Alexander Hamilton brought directly to the framing of the Constitution when he described impeachment as “a method of national inquest into the conduct of public men” concerning “the abuse or violation of some public trust.” The *Federalist* No. 65. If impeachment is a national inquest, Congress must possess authority to inquire before it can conclude.

Real-world congressional-investigation doctrine confirms the same basic point. Each House possesses implied powers necessary to make its express constitutional powers effective. *Anderson v. Dunn*, 19 U. S. (6 Wheat.) 204 (1821). In *McGrain v. Daugherty*, 273 U. S. 135, 174 (1927), the Court held that the “power of inquiry—with process to enforce it—is an essential and appropriate auxiliary to the legislative function.” That power is broad, though not unlimited. Congressional compulsion must remain tied to a legitimate legislative or constitutional purpose and

Opinion of the Court

remains subject to constitutional limits. *Kilbourn v. Thompson*, 103 U. S. 168 (1881); *Watkins v. United States*, 354 U. S. 178, 187 (1957); *Trump v. Mazars USA, LLP*, 591 U. S. 848 (2020). But those limits do not require Congress to establish the truth of allegations before investigating them.

The Good Behavior Clause protects judicial independence in adjudication. A judge may not be disciplined merely because others disagree with the reasoning, breadth, or consequences of a lawful judicial act. See *In re BellaRevelation*, 1 U.S. ___, ___ (2026) (*per curiam*) (“Disagreement with the reasoning or breadth of an opinion does not, standing alone, constitute misconduct.”). That principle follows from Article III itself: judicial independence exists so that judges may decide cases according to law, not according to political approval. See *The Federalist* No. 78 (Hamilton). The Clause, however, does not render judges categorically immune from inquiry into alleged misconduct. Judges remain civil officers subject to impeachment. If Congress could not investigate alleged misconduct until it already possessed a non-speculative factual predicate for doing so, a self-defeating loop is made apparent.

As the District Court correctly observed, the Twenty-Eighth Amendment does not alter that conclusion. The Amendment establishes a judicial disciplinary process administered by this Court. It protects judges from suspension or sanction for good-faith legal determinations and vests judicial disciplinary authority in the Supreme Court. “The refusal or inability to act on a complaint filed to the Supreme Court under the Twenty-Eighth Amendment does not preclude similar investigation and potential impeachment by the legislature, and vice-versa.” Respondents are also correct that the Twenty-Eighth Amendment’s own reference to impeachment confirms that judicial discipline and impeachment may operate in

Opinion of the Court

parallel, not that one precludes the other. See Brief for Respondents 10–11.

Accordingly, whether the allegations here would ultimately justify judicial discipline is not before us. Whether they would justify impeachment is likewise not before us. Whether the Committee's findings were wise, fair, or accurate is not before us. The question presented is narrower: it is whether courts may police the sufficiency of Congress's impeachment-related investigative predicate at the outset of the inquiry. Absent an express constitutional limitation, they may not.

This Court must emphasize, however, that this conclusion does not authorize Congress to punish protected judicial decisionmaking under the guise of investigation. A judge may not be removed, sanctioned, or constitutionally condemned merely because Congress disagrees with their rulings. But allegations of improper *ex parte* communications, manipulation of case assignment, violations of judicial ethics, or other conduct potentially outside good behavior are not immune to investigation. Congress need not await this Court's disciplinary determination before beginning an inquiry into matters potentially bearing upon impeachment.

Petitioner nevertheless relies upon *In re Hastert Clause*. That reliance requires us to confront the continued viability of that decision.

In *Hastert*, this Court exercised inherent review over an internal rule of the House of Representatives regarding the advancement of measures in the House, believing there to be a "clear and compelling threat" where the Court's intervention was "narrowly tailored to remove that threat and no more." *In re Forfeiture of Congressional Seats*, 1 U. S. ____ (2025). The decision was intended to prevent political actors from using internal procedures to deny equal representation of House Representatives in the minority political party. *Hastert* additionally modified the doctrine of political question further in an attempt to "tailor it to the

Opinion of the Court

platform," drawing from *VinnieMc2165 v. Mayflower*, 2 Mayfl. ____ (2025) to adapt it to RxUSA. Specifically, that "political departments must be subject to some form of checks and balances even as to exercise their political powers . . . their discretion may not ultimately ignore the limits which the Constitution sets forth." *In re Hastert Clause*, 1 U. S. ____ (2025) based on a sweeping application of *United States v. Ballin*, 144 U. S. 1, 5 (1892).

Ballin permits courts to enforce express constitutional limits. It does not permit courts to supervise political-branch discretion whenever a litigant describes that discretion as structurally dangerous. A court may decide whether Congress violated a textual constitutional command. It may not audit Congress's motives, timing, evidentiary threshold, investigative judgment, or internal proceedings merely because those matters are framed as threats to constitutional structure.

The framework adopted in *Hastert* with respect to political question doctrine has no stable limiting principle. A congressional rule, subpoena, committee hearing, investigative finding, or impeachment inquiry may be categorized as a structural threat. Eliminating the political question doctrine has opened the proverbial Pandora's box, becoming a vehicle for an expansion of the Supreme Court's own power. The doctrine's very purpose is to restrain courts from deciding matters textually committed to coordinate branches or lacking judicially manageable standards. *Baker v. Carr*, 369 U. S. 186, 217 (1962).

Then-Chief Justice Inslee warned of this danger in dissent. He explained that federal courts do not possess "a roving commission to publicly opine on every legal question," nor may they "exercise general legal oversight of the Legislative and Executive Branches." *In re Hastert Clause*, 1 U. S. ____, ____ (2025) (Inslee, C.J., dissenting) (quoting *TransUnion LLC v. Ramirez*, 594 U. S. 413, 423 (2021)). The present case proves that warning well founded. Petitioner's argument asks this Court to measure the

Opinion of the Court

sufficiency of Congress’s investigative predicate, review the timing and motive of a congressional inquiry, and determine whether impeachment-related proceedings were justified before they began. Whatever else that may be, it is not enforcement of an express constitutional limit.

We therefore overrule *In re Hastert Clause*, 1 U. S. ____ (2025), insofar as it transformed the *In re Forfeiture* inherent-review standard into a modification of the political question doctrine. *In re Forfeiture* remains undisturbed. *Ballin* likewise remains good law. Courts may enforce express constitutional limitations in properly presented cases, but they may not supervise political-branch discretion absent such a limitation.

This holding does not require us to define the full scope of Article III good behavior. The District Court identified alleged violations of law, constitutional duty, or applicable judicial rules as examples of conduct potentially outside good behavior. For the purposes of this case, that is sufficient. However, defining the outer boundaries of good behavior is distinct from supervising every congressional decision made while investigating whether that standard has been violated. The Constitution commits impeachment to Congress. At the investigative stage, absent enforcement of an express constitutional limitation, courts do not decide what threshold of suspicion Congress must require, how Congress must weigh allegations, or how Congress must structure its inquiry.

IV

The Petitioner’s third question asks whether the District Court erred in declining declaratory relief regarding findings placed on the congressional record. Specifically, the Petitioner asks this Court to determine whether congressional findings concerning case assignment and related testimony were materially false. The District Court rejected that claim under judicially implied Speech and

Opinion of the Court

Debate protections. For the reasons explained in Part II, that reasoning cannot stand.

Petitioner argues the error was procedural. The Petitioner contends that the District Court resolved the declaratory-relief claim at summary judgment without engaging in Exhibit G, Exhibit H, or the circumstances under which the challenged finding was entered on the congressional record. Brief for Petitioner 21–28; Reply Brief for Petitioner 17–19. Respondents answer that the evidentiary record, “however compelling,” cannot overcome the structural problem with asking a court to declare a coordinate branch’s factual determination incorrect. Brief for Respondents 4–5, 11–14.

The Respondents have a better argument on the availability of relief. Assuming the Petitioner’s description of the evidentiary record is correct, the requested relief is unavailable as matter of constitutional structure. Where the relief sought is unavailable as a matter of law, Rule 56 does not require a court to resolve immaterial factual disputes before entering judgment.

The declaration Petitioner seeks would require this Court to examine testimony before a congressional committee, compare that testimony against committee findings, and declare whether the legislative branch’s impeachment-related factual characterizations were materially false. That is precisely the sort of inquiry foreclosed by the political-question principles restored in Part III. Under *Baker*, courts do not decide questions textually committed to a coordinate branch or questions lacking judicially manageable standards. *Baker v. Carr* 369 U. S. 186, 217 (1962). Petitioner identifies no express constitutional limitation requiring this Court to correct Congress’s impeachment-related factual findings. Her contrary argument rests on the heightened-review framework of *Hastert*, which Part III overrules. The District Court therefore reached the correct result in declining declaratory

Opinion of the Court

relief, although it erred in relying on implied Speech or Debate protections.

V

Respondents also urge affirmance under Section 502(a) of the Judiciary Act. Brief for Respondents 7–8. Petitioner answers that Section 502(a) is a Title V tort exclusion and does not bar constitutional claims for equitable relief. Reply Brief for Petitioner 7–10. Because the requested relief is unavailable on the constitutional and structural grounds explained above, we need not decide that statutory question.

For the foregoing reasons, the judgment of the District Court is affirmed in part and reversed in part. The District Court correctly declared the purported contempt citation void and correctly declined to quash the subpoena, enjoin the investigation, or grant declaratory relief. It erred, however, in relying upon judicially implied Speech and Debate protections. We therefore overrule *In re Hastert Clause*, 1 U. S. ____ (2025), insofar as it transformed the *In re Forfeiture* inherent-review standard into a modification of the political question doctrine.

It is so ordered.

INSLEE, J., concurring

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[June 30, 2026]

JUSTICE INSLEE, concurring.

The Court correctly respects Congress’s ability to make independent determinations. In this complicated case involving a mixed-interbranch conflict, the Court gives Congress more free space in making its political determinations. It does so at its core by overturning *In re Hastert*, 1 U. S. ____, (2025), a judicially crafted decision borne from a magical judicial wand that I like to call *In re Forfeiture of Congressional Seats*, 1 U. S. ____, (2025). By overturning that case not a case, the Court hopes to restore the political questions doctrine in light of its new view of legislative respect.

What a shame, though. As much as I dislike those abominations of decisions, they created an iconic cornerstone of our community’s jurisprudence. *In re Hastert Clause* is (or should I say, was) a case that set in stone the iconic tailoring principle: that our community’s legal principles and thought must conform to the limitations of our virtual dimension. Based on such tailoring principle, this Court made a stern emphasis on the obvious idea that the Legislative and Executive branches cannot violate the Constitution. While the political departments must be able to make their independent determinations, their actions are still potentially subject to judicial review. We have disregarded our own egotistical urge to “supervise political-branch discretion.” *Ante*, at 8. But we remain firm in our role “to enforce constitutional limits,” *ibid.*, and “say what

Opinion of the Court

the law is.” *Marbury v. Madison*, 5 U. S. (1 Cranch) 137 (1803). No one should forget that.

But I mean we could have avoided this mess in the first place, right? If only the Court heeded my advice earlier about warping and destroying good judicial doctrines on a whim, overturning a decision would not be necessary.

On a final note, be mindful of what we have decided. We have not opined on the substance of any congressional investigation or inquiry. We do not decide whether a congressional decision was good or bad. In my view, we have not even expressed an opinion on any impeachment related proceeding. Again, read the court’s opinion and be mindful of what it does and does not say.

With these considerations, I am happy to join THE CHIEF JUSTICE’s eloquently written opinion.